Commission de Surveillance du Secteur Financier

Circular CSSF 25/892

Application of the Joint ESA Guidelines on the estimation of aggregated annual costs and losses caused by major ICT-related incidents under Regulation (EU) 2022/2554 (JC 2024 34)

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To all financial entities defined in Article 2(1)(a) to (i), (k) to (m), (p), (r) and (s), and within the meaning of Article 2(2) of Regulation (EU) 2022/2554[1] on digital operational resilience for the financial sector (hereafter "DORA")

Luxembourg, 27 May 2025

Ladies and Gentlemen,

The purpose of this circular is to inform you that the CSSF, in its capacity as competent authority, applies the Joint Guidelines of the European Supervisory Authorities (ESAs) on the estimation of aggregated annual costs and losses caused by major ICT-related incidents referred to in Article 11(11) of DORA (i.e. JC/GL/2024/34; hereafter the "Guidelines").

This circular is divided into three chapters:

- Chapter 1 defines the scope of application;
- Chapter 2 clarifies the reporting obligation to the CSSF;
- Chapter 3 provides for the entry into force of this circular.

The guidelines are attached as an annex to this circular.

[1] Regulation (EU) 2022/2554 of the European Parliament and of the Council of 14 December 2022 on digital operational resilience for the financial sector and amending Regulations (EC) No 1060/2009, (EU) No 648/2012, (EU) No 600/2014, (EU) No 909/2014 and (EU) 2016/1011

Chapter 1: Scope of application

1. The following entities, other than microenterprises as defined in Article 3(60) of DORA[2], are to be considered as financial entities in the framework of this circular:

   a) credit institutions, investment firms, market operators operating a trading venue and approved publication arrangements (APAs) with a derogation and authorised reporting mechanisms (ARMs) with a derogation within the meaning of the Law of 5 April 1993 on the financial sector (LFS);

   b) payment institutions, account information service providers and electronic money institutions within the meaning of the Law of 10 November 2009 on payment services (LPS);

   c) crypto-asset service providers and issuers of asset-referenced tokens within the meaning of Regulation (EU) 2023/1114;

   d) central securities depositories within the meaning of the Law of 6 June 2018 on central securities depositories (CSD Law);

   e) central counterparties within the meaning of the Law of 15 March 2016 on OTC derivatives, central counterparties and trade repositories;

   f) management companies incorporated under Luxembourg law and subject to Chapter 15 or Article 125-2 of Chapter 16, and Luxembourg branches of investment fund managers subject to Chapter 17, and investment companies which did not designate a management company within the meaning of Article 27 of the Law of 17 December 2010 relating to undertakings for collective investment;

   g) alternative investment fund managers authorised under Chapter 2 and internally managed alternative investment funds within the meaning of point (b) of Article 4(1) of the Law of 12 July 2013 on alternative investment fund managers (AIFM Law);

   h) institutions for occupational retirement provisions authorised in accordance with Article 2(2) of the Law of 13 July 2005 on institutions for occupational retirement provision in the form of pension savings companies with variable capital (SEPCAVs) and pension savings associations (ASSEPs);

   i) administrators of critical benchmarks within the meaning of point (b) of Article 20(1) of Regulation (EU) 2016/1011;

   j) crowdfunding service providers within the meaning of the Law of 16 July 2019 on the operationalisation of European regulations in the area of financial services;

2. Branches in Luxembourg of the financial entities that are part of a legal entity whose head office is located in a different Member State of the European Union (EU branches) are expected to report their estimations under DORA to the competent authority of that Member State (home Member State) upon its request and are therefore excluded from the scope of this circular.

[2] 'microenterprise' means a financial entity, other than a trading venue, a central counterparty, a trade repository or a central securities depository, which employs fewer than 10 persons and has an annual turnover and/or annual balance sheet total that does not exceed EUR 2 million.

Chapter 2: Reporting obligation to the CSSF

3. As required in Article 11(10) of DORA, financial entities shall, upon request, make available to the CSSF an estimation of aggregated annual costs and losses of major ICT-related incidents.

4. The CSSF, in its capacity as competent authority, applies in full the Guidelines and integrates them into its administrative practice and regulatory approach with a view to promoting supervisory convergence in this field at European level.

5. The estimation referred to in paragraph 3 above shall be done in line with the Guidelines and submitted by using the "reporting template for gross costs and losses and financial recoveries in the reference year" as defined in the Annex I of the Guidelines.

Chapter 3: Date of application

6. This circular shall apply as from 31 May 2025.

Claude WAMPACH
Director

Marco ZWICK
Director

Jean-Pierre FABER
Director

Françoise KAUTHEN
Director

Claude MARX
Director General

Annex Joint Guidelines of the European Supervisory Authorities (ESAs) on the estimation of aggregated annual costs and losses caused by major ICT-related incidents referred to in Article 11(11) of DORA (JC/GL/2024/34).